

25STCV10011 25STCV10011

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 25STCV10011 Hearing Date: July 31, 2026 Dept: 408

Defendant Los Angeles County

Metropolitan Transportation Authority and Men Kong Tham's Motion to Sever is GRANTED.

I.

BACKGROUND

On April 4, 2025, Plaintiffs Diane Arrecis and Lucia Arrecis ("Plaintiffs") filed a complaint against Defendants Los Angeles County Metropolitan Transportation Authority ("MTA"), Men Kong Tham ("Tham"), Olivia Nicene Fuson ("Nicene"), and Brian Fuson ("Fuson", collectively "Defendants") alleging two causes of action for motor vehicle negligence.

On

June 3, 2025, MTA filed an answer to Plaintiffs' complaint.

On

June 12, 2025, Tham filed an answer to Plaintiffs' complaint.

On

July 22, 2025, Nicene and Fuson ("Fuson Defendants") filed an answer to Plaintiffs' complaint.

On

June 2, 2026, MTA and Tham ("Moving Defendants") filed this Motion to Sever. On July 20, 2026, Plaintiffs filed an opposition. On July 24, 2026, Moving Defendants filed a reply.

II.

LEGAL STANDARD

Code of Civil Procedure section 1048(b) provides:

“The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code Civ. Proc., § 1048, subd. (b).) Severance is at the discretion of the trial court when it can be done without prejudice to a substantial right. (National Electric Supply Co. v. Mount Diablo Unified School District (1960) 187 Cal. App. 2d 418, 421.)

III.

DISCUSSION

Moving Defendants move for an ordering severing the claims arising from two separate motor vehicle incidents currently joined in this action pursuant to Code of Civil Procedure section 1048(b) on the grounds that the two claims arise from two separate incidents, involve different defendants, and are based on distinctly different operative facts. (Motion, at p. 3.)

Moving Defendants

provide that Plaintiffs were involved in a rear end collision on May 11, 2023, with the Fuson Defendants. (Ibid.) Separately, on May 25, 2023, Plaintiff Lucia Arrecis was involved in a collision with Moving Defendants which allegedly aggravated her May 11, 2023, injuries. (Ibid.) None of the other parties were involved in the May 25, 2023, collisions. (Ibid.) Moving Defendants argue that as the claims involve different issues, trying both incidents together will reduce judicial efficiency, risks misallocation of causation and damages, and require duplicative presentations of evidence warranting severance. (Id., at pp. 4-5.)

In opposition,

Plaintiffs argues that severing the matter will result in the same evidence being presented to multiple juries and inconsistent verdicts attributing damages to a different crash. (Opp., at pp. 3-5.)

The court finds
that severance is warranted to promote judicial economy as litigating each collision
separately will prevent
potential issues of juror confusion arising from the nature of the alleged
damages and Moving Defendants' potential liability in the action involving
Plaintiff Lucia Arrecis alone.

Accordingly, the
motion is granted.

IV.

CONCLUSION

Defendant Los Angeles County Metropolitan Transportation
Authority and Men Kong Tham's Motion to Sever is GRANTED.